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|    |                                                                                                                                         | <p>Therefore, the Court cannot grant summary adjudication of the issue as framed by Defendant and declines to reach the merits.</p> <p>Moving party to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 12 | <p><b>Goldman vs. Pancho's Restaurant</b></p> <p><b>2024-01408882</b></p> <p><b>Motion for Summary Judgment and or Adjudication</b></p> | <p>Plaintiff Cheyenne Goldman's Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED.</p> <p>Plaintiff has asked the court to enter partial summary judgment-summary adjudication-on the issue of whether Defendants violated various California Labor Codes and IWC Wage Orders, leaving damages to be tried. Specifically, in her notice of motion, Plaintiff requests an order granting partial summary judgment or, in the alternative, summary adjudication of the ninth, tenth, eleventh, and twelfth causes of action. In the "Conclusion" section of the motion and the reply, Plaintiff explains that "[i]n so doing, the Court would limit the remaining issues for trial on those causes of action to the calculation of damages." (Motion at p. 15:19-20; Reply at p. 10:22-23 [emphasis added].) In her reply Plaintiff also states, "Whether the number of noncompliant shifts is 164 [Citation] or some other figure is a question of damages for trial, which is how Plaintiff framed the motion. [Citation.]" (Reply at p. 3:23-25 [emphasis added].)</p> <p>As an initial matter, "there is no such creature as 'partial summary judgment' in California; the proper term is 'summary adjudication.' [Citation]." (<i>Paramount Petroleum Corp. v. Superior Court</i> (2014) 227 Cal.App.4th 226, 243.)</p> <p>More importantly, Plaintiff's requested relief is improper. "[T]here [is] no statutory basis for such an order. As we have explained, the governing statute provides that a plaintiff can only obtain summary adjudication of a cause of action if the plaintiff establishes each element of the cause of action entitling it to judgment on that cause of action. The court specifically held that '[a] decision on the issue of liability against the party on whom liability is sought to be imposed does not result in a judgment until the issue of damages is resolved.' [Citation.] Therefore, such a summary adjudication would be improper. We fully agree with the court's reasoning." (<i>Paramount Petroleum Corp., supra</i>, 227 Cal.App.4th at p. 243 [breach of contract case], quoting <i>Department of Industrial Relations v. UI Video Stores, Inc.</i>(1997) 55 Cal.App.4th 1084, 1097; Code Civ. Proc., § 437c, subd. (f)(1) ["A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty."].)</p> |

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|  |  | <p>Here, Plaintiff's requested relief clearly leaves the issue of damages to be resolved at trial.</p> <p>The motion is denied.</p> |
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